

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201705257	☒ Force ☐ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☒ Injury
Incident Date(s) Wednesday, 06/21/2017 6:25 AM	Location of Incident: Long Island Expressway east of the Grand Central Parkway & § 87(2)(b)		18 Mo. SOL 12/21/2018	Precinct: 110	
Date/Time CV Reported Wed, 06/21/2017 12:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/27/2017 2:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Smith	14747	940747	HWY 03
2. POM Michael Rosenberg	01292	931099	HWY 03
3. POM Michael Johnson	01982	930429	HWY 03
4. An officer			
5. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Robert Matzelle	07630	916157	ESS 10
2. DTS Albert Yannucciello	07935	923390	ESS 10
3. LT Daniel Ziegler	00000	929398	HWY 03
4. POM Yavir Julio	27241	950652	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Smith	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Gregory Smith used physical force against § 87(2)(b)	A . Exonerated
B . POM Michael Johnson	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Michael Johnson used physical force against § 87(2)(b)	B . Exonerated
C . POM Michael Rosenberg	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Michael Rosenberg used physical force against § 87(2)(b)	C . Exonerated
D . Officers	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, officers used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, an officer hit § 87(2)(b)'s head against his windshield.	E . Officer(s) Unidentified
F . An officer	Force: At the Long Island Expressway and the Grand Central Parkway in Queens, an officer tightly handcuffed § 87(2)(b)	F . Officer(s) Unidentified
G . POM Gregory Smith	Discourtesy: At § 87(2)(b), Police Officer Gregory Smith spoke discourteously to § 87(2)(b)	G . Unsubstantiated

Case Summary

On June 21, 2017, Sgt. Navin Misir of Highway District 3 filed this complaint on behalf of § 87(2)(b) generating IAB log number § 87(2)(b). On June 27, 2017, IAB forwarded this case to the CCRB.

On June 21, 2017, at approximately 6:25 a.m., § 87(2)(b) crashed his car on the Long Island Expressway just east of the Grand Central Parkway in Queens. § 87(2)(b)'s passenger, § 87(2)(b) fled the scene on foot. PO Gregory Smith, PO Michael Johnson, and PO Michael Rosenberg, all of Highway District 3, responded to the scene and questioned § 87(2)(b) about the crash, and he confirmed that he was driving the car. The officers noticed that § 87(2)(b) was sweating profusely, speaking incoherently, and had resting nystagmus (pupils bouncing back and forth). This led them to believe that § 87(2)(b) was under the influence of an illegal drug, possibly PCP. At this point, they decided that § 87(2)(b) would be placed under arrest for § 87(2)(b). The officers asked § 87(2)(b) for his registration and proof of insurance, and § 87(2)(b) told them that this documentation was in his vehicle. The officers told § 87(2)(b) that they would retrieve this documentation themselves. § 87(2)(b) insisted on retrieving the documentation himself, and he entered the car and began removing bags of cocaine from the glove compartment and placing them in his pants. PO Smith, PO Johnson, and PO Rosenberg pulled § 87(2)(b)'s arms behind his back and handcuffed him against the passenger side of his vehicle while PO Smith stepped on § 87(2)(b)'s foot to prevent him from kicking his legs (**Allegations A, B, and C**). The officers then allegedly punched § 87(2)(b) in his ribs, elbowed him in his back, and kned him in his sides (**Allegation D**). One officer allegedly grabbed the back of § 87(2)(b)'s head and collar and slammed his face against his windshield twice in rapid succession, § 87(2)(b) (**Allegation E**). The officers then allegedly attempted to sweep § 87(2)(b)'s feet out from underneath him and bend § 87(2)(b) backwards (**Allegation D cont'd**). An officer then allegedly tightened § 87(2)(b)'s handcuffs (**Allegation F**). § 87(2)(b) was placed on a stretcher and transported to § 87(2)(b) where PO Smith allegedly said, "You're a piece of shit," "You're getting what you deserve," "We're gonna take your fucking car, your shit's gone," and, "You're fucked, you're going to jail. You're done (**Allegation G**)." § 87(2)(b) was charged with § 87(2)(b).

There is no video footage of § 87(2)(b)'s arrest (see Potential Issues section).

This case is being closed after the 90-day benchmark of September 20, 2017. Contact with § 87(2)(b) was not established until July 12, 2017, and he was not interviewed at the CCRB until July 19, 2017. Dash cam footage from Highway Unit 3 was requested on June 29, 2017. PO Smith's dash cam footage was received on July 28, 2017, and PO Johnson's dash cam footage was not received until September 12, 2017. PO Rosenberg's dash cam footage was never received.

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest, this case was deemed ineligible for mediation.
- As of October 20, 2017, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is this first CCRB complaint in which § 87(2)(b) is involved (Board Review 03).
- PO Smith has been a member of the NYPD for 11 years and is the subject of five prior CCRB allegations involving two cases with one substantiated allegation (Board Review 04).
 - In case number 201507338, PO Smith was the subject of a Discourtesy: Word allegation that was closed as substantiated. The CCRB recommended and the NYPD imposed a penalty of Command Discipline – A in regards.
- PO Johnson has been a member of the NYPD for 15 years and is the subject of 12 prior CCRB allegations involving seven cases with no substantiated allegations (Board Review 04).
 - PO Johnson was the subject of Force: Physical Force allegations in case numbers 200401710 (exonerated and unfounded) and 200408977 (complainant uncooperative).
- PO Rosenberg has been a member of the NYPD for 15 years and is the subject of six prior CCRB allegations involving four cases with no substantiated allegations (Board Review 04).

§ 87(2)(g)

Potential Issues

- In § 87(2)(b)'s arrest report (Board Review 05), PO Smith wrote that he observed § 87(2)(b) sweating profusely, speaking incoherently, and experiencing resting nystagmus. In his CCRB interview, PO Smith attributed this to § 87(2)(b) being under the influence of PCP, a dissociative hallucinogen. Glass containers containing PCP residue were vouchered as arrest evidence (Board Review 06). § 87(2)(b) may have been intoxicated before and during his CCRB interview, as his physical condition exactly matched that listed on his arrest report. His face was flushed, he was sweating profusely, he was at times incoherent, and at one point, he began to fall asleep. § 87(2)(g)
- Dash cam footage from PO Smith's, PO Johnson's, and PO Rosenberg's police vehicles was requested. PO Johnson's footage and duplicate copies of PO Smith's footage was received, and PO Rosenberg's footage was not received. Both PO Johnson's and PO Smith's dash cam footage is obscured by FDNY vehicles that had arrived at the scene prior to the officers. PO Rosenberg stated in his CCRB interview that he also parked behind an FDNY vehicle and had no useful dash cam footage. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the subject of Allegation G as a uniformed white male in his late 30s or early 40s who was 6' tall, weighed 220 to 230 pounds, and had a fat build, a salt-and-pepper buzz cut, brown eyes, and a stubbly beard. § 87(2)(b) did not believe this officer had any partners present at the hospital with him. § 87(2)(g)
§ 87(2)(b). PO Rosenberg is a § 87(2)(b)-old white male who is 5'9" tall, weighs 240 pounds, and has a heavy build, a salt-and-pepper buzz cut, and brown eyes (Board Review 07). PO Rosenberg stated that he was not present at the hospital with § 87(2)(b) at any point, and his memo book (Board Review 08) makes no mention of him going to § 87(2)(b) on the incident date. However, PO Smith stated that he was

present with § 87(2)(b) at the hospital for at least two hours, during which time he watched him sober up and had a conversation with him about what happened in the accident. PO Smith is a § 87(2)(b)-old white male who is 5'9" tall, weighs 180 pounds, and has an average build, brown hair, and blue eyes. § 87(2)(g)

- § 87(2)(b) was unable to provide any useful descriptions of the officers who used force against him (see Allegations D, E, and F). PO Smith, PO Rosenberg, and PO Johnson each denied punching § 87(2)(b) in his ribs, elbowing him in his back, kneeling him in his sides, slamming his face against the car, attempting to bend him backwards and sweep his feet out from underneath him, tightening his handcuffs after they had already been applied, and observing any officer perform any of these actions. None of their Threat, Resistance, and Injury Reports (Board Review 09, 10, 11) make mention of any force being used against § 87(2)(b) aside from him being forcibly restrained so he could be handcuffed. Furthermore, PO Smith stated that two firefighters assisted the officers in restraining § 87(2)(b) against his car, and he did not know whether these firefighters made physical contact with § 87(2)(b). In his ESD2 Report (Board Review 12), Det. Robert Matzelle of the Emergency Services Unit stated that § 87(2)(b) voluntarily surrendered to the ESU officers, who assisted EMS in placing him in an ambulance. § 87(2)(g)

Allegations Not Pleaded

- PO Smith stated that he probably used profanities towards § 87(2)(b) at the scene of the accident while he attempted to get him to stop resisting being handcuffed, and noted that he may have bade a statement akin to. "Give me your fucking arm." However, § 87(2)(b) made no mention of any officer using profanities towards him at the scene of the accident. § 87(2)(g)

Allegation A – Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Gregory Smith used physical force against § 87(2)(b)

Allegation B – Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Michael Johnson used physical force against § 87(2)(b)

Allegation C – Force: At the Long Island Expressway and the Grand Central Parkway in Queens, Police Officer Michael Rosenberg used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while he was standing outside of his vehicle, a male officer asked him to face his car and put his hands behind his back. A white male officer then pulled his arms behind his back and immediately handcuffed him. The officers then placed the front side of § 87(2)(b)'s body against the passenger side of his vehicle near the hood and told him to stop resisting. § 87(2)(b) stated that the officers held his feet down by stepping on them. § 87(2)(b) denied offering physical resistance, and he had no recollection of reaching into his glove compartment into the officers' presence.

PO Smith's and PO Rosenberg § 87(2)(g) both stated that § 87(2)(b) entered his car after being told not to do so, and that § 87(2)(b) began removing bags of drugs from the glove compartment and placing them in his pants. They then pulled § 87(2)(b) pulled out of the car from the driver door by his legs or chest, and he landed on his feet. PO Smith stated that § 87(2)(b) disobey commands to exit the car and put his hands behind his back. The

officers then placed § 87(2)(b)'s chest against the rear driver-side door or the pillar that separates the front and back doors. The officers attempted to hold § 87(2)(b) still against the car and pull his arms behind his back, but he offered resistance by pulling his arms away from the officers, pushing against the car, stiffening his body, and kicking his feet. PO Smith stated that he stepped on § 87(2)(b)'s left foot and pushed § 87(2)(b)'s leg against the car with his knee in order to prevent him from kicking. PO Smith used two hands to pull § 87(2)(b)'s left arm behind his back and then handcuffed his left wrist. PO Rosenberg stated that he grabbed § 87(2)(b)'s right arm, and he denied stepping on § 87(2)(b)'s feet. PO Smith stated that two firefighters assisted the officers in restraining § 87(2)(b) against his car by holding the officers' backs to make sure § 87(2)(b) did not push past them. However, he did not know whether these firefighters made physical contact with § 87(2)(b). PO Smith stated that it took the officers approximately one minute to handcuff § 87(2)(b) while PO Rosenberg stated that it took them approximately five minutes. After § 87(2)(b) was handcuffed, the officers held him in place against his car and awaited the arrival of the ESU officers to escort him to an ambulance. Both officers stated that no additional force was used against § 87(2)(b) after he was handcuffed aside from holding him in place.

PO Johnson stated that § 87(2)(b) placed the drugs into his pants and then exited the vehicle on his own. He stated that § 87(2)(b) then pushed him and PO Smith on their chests and then got one foot over the median of the Long Island Expressway. PO Johnson then grabbed the back of § 87(2)(b)'s t-shirt, and pulled him away from the median. PO Johnson and PO Smith then placed § 87(2)(b) against the pillar between the driver and passenger doors on the driver side of the car. PO Johnson stated that the ESU officers handcuffed § 87(2)(b) when they arrived, that § 87(2)(b) did not resist the ESU officers, and that the ESU officers did not use force against § 87(2)(b). PO Johnson denied stepping on § 87(2)(b)'s feet. The remainder of PO Johnson's statement is consistent with PO Smith's and PO Rosenberg's statements.

The Threat, Resistance, and Injury Reports prepared by PO Smith (Board Review 09), PO Rosenberg (Board Review 10), and PO Johnson (Board Review 11) are generally consistent with each other, as well as with each of their CCRB statements. Each report states that § 87(2)(b) was forcibly restrained in order to be handcuffed and does not indicate that any additional force was used against § 87(2)(b). The reports each state that § 87(2)(b) offered resistance by tensing up and flailing his arms, and that that this force was used in order to overcome § 87(2)(b)'s resistance and aggression.

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According to Patrol Guide Procedure 221-01, "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances." See Board Review 13.

photograph taken by the undersigned at the CCRB (Board Review 14) shows scars on § 87(2)(b) s wrists that he allegedly sustained from the handcuffs being tightened.

PO Smith, PO Rosenberg, and PO Johnson each denied punching § 87(2)(b) in his ribs, elbowing him in his back, kneeling him in his sides, slamming his face against the car, attempting to bend him backwards and sweep his feet out from underneath him, tightening his handcuffs after they had already been applied, and observing any officer perform any of these actions. PO Smith stated that two firefighters assisted the officers in restraining § 87(2)(b) against his car, and he did not know whether these firefighters made physical contact with § 87(2)(b). In his ESD2 Report (Board Review 12), Det. Matzelle stated that § 87(2)(b) voluntarily surrendered to the ESU officers, who assisted EMS in placing him in an ambulance.

The Threat, Resistance, and Injury Reports prepared by PO Smith (Board Review 09), PO Rosenberg (Board Review 10), and PO Johnson (Board Review 11) make no mention of any force being used against § 87(2)(b) aside from the officers forcibly restraining him in order to get him in handcuffs. Each of these reports indicates that § 87(2)(b) sustained minor lacerations/abrasions, and photographs attached to these reports show a small amount of bleeding from the bridge of § 87(2)(b)'s nose. In his report, PO Smith attributed this injury to “Unintentional Action by MOS” because the officers did not intend to injure § 87(2)(b) when they attempted to restrain him, but he did not know how this injury was sustained or whether § 87(2)(b)'s head made impact with anything, but he noted that the injury was sustained after § 87(2)(b) was pulled out of his car and before he was handcuffed. PO Rosenberg marked in his report that this injury was caused by “Unintentional Action by Non-MOS,” and he stated that he learned at a later point that § 87(2)(b) sustained a cut to his nose, but he noted that he did not know how § 87(2)(b) sustained this injury and that he did not see this injury himself. PO Johnson marked in his report an injury was caused by “Intentional Action by Non-MOS,” and he stated that he marked this because § 87(2)(b)'s may have been injured while the officers attempted to restrain him against the car. PO Johnson was shown the photograph of the bleeding to § 87(2)(b)'s nose, and he stated that he did not recognize the injury or know how it was sustained, but he noted that it is possible that it was the result of the car accident.

§ 87(2)(g) § 87(2)(b)

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§ 87(2)(b)

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§ 87(2)(b)

It is therefore recommended that **Allegations D, E, and F** be closed as **officer(s) unidentified**.

Allegation G – Discourtesy: At § 87(2)(b), Police Officer Gregory Smith spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that while he was handcuffed to a bed at the hospital, PO Smith said, "You're a piece of shit," "You're getting what you deserve," "We're gonna take your fucking car, your shit's gone," and, "You're fucked, you're going to jail. You're done." PO Smith denied making any of these statements and using any profanities towards § 87(2)(b) at the hospital. PO Johnson, who was briefly present at the hospital to have his memo book signed by his supervisor, Sgt.

Mizir, stated that PO Smith did not make any of these statements or use profanities towards § 87(2)(g) § 87(2)(g)
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§ 87(2)(b) It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Squad: 9

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date